HILCHOT SHABBAT

Maaseh Shabbat & Cooking for the Ill: Hilchot Shabbat

Given Thursday 12 February 2026 · מלאכת בישול — Siman 318, Seifim 1–2:

General Overview of the Siman

Siman 318 deals with **דיני המבשל בשבת** — the laws of cooking on Shabbat — and contains 19 se'ifim. It is one of the largest and most discussed simanim in Hilchot Shabbat. The Gemara plays on the letters שי"ח (shin-yud-chet), noting that שיח means "discussion" — because there is so much to discuss.

Bishul vs. Ofeh — Background

- The 11th melachah in the Mishnah is listed as **אופה** (baking), not בישול (cooking).
- However, in the Mishkan, when making dyes for the coverings, they **cooked with liquid** — which is bishul, not ofeh.
- The Gemara asks: why does the Tanna call it Ofeh? Answer: **סידורא דפת נקט** — the Mishnah follows the order of bread-making, and the first 11 melachot trace that process. So the Tanna uses "Ofeh" to maintain that sequence.
- In practice, we refer to this melachah as **Bishul**, which is why the Shulchan Aruch and Rama use that term.

Avot and Toladot of Bishul

- **Avot** (primary categories, all equally prohibited d'Oraita):

בישול — cooking (with liquid)
אפייה — baking (dry heat)
טיגון — frying
צלייה — roasting

- **Toladot** (secondary categories):
- Melting substances
- Heating something until it becomes red-hot
- (To be discussed further with the Rambam in Seif Gimmel)

Seif Aleph (א): Ma'aseh Shabbat — Benefiting from Melachah Done on Shabbat

Why Is This Here?

Seif Aleph does not directly discuss bishul. It addresses a broader principle: **can one benefit from the product of a Shabbat violation?** The Shulchan Aruch places it here because the Gemara discusses this principle in the context of bishul — but it applies to virtually all melachot.

The Three Talmudic Opinions

The Gemara (appearing in several places in Shas) records three Tannaitic opinions:

1. Rabbi Meir

המבשל בשבת — בשוגג יאכל, במזיד לא יאכל

- **Beshogeg** (unintentional): Everyone may eat the food, even on Shabbat itself.
- **Bemeizid** (intentional): No one may eat it on Shabbat, but everyone may eat it immediately after Shabbat (Motza'ei Shabbat).

2. Rabbi Yehuda (Middle Opinion)

בשוגג יאכל במוצאי שבת, במזיד לא יאכל עולמית

- **Beshogeg**: No one may eat the food on Shabbat. Everyone may eat it immediately after Shabbat.
- **Bemeizid**: The violator himself may **never** eat it (אסור לו לעולם). Everyone else may eat it after Shabbat.

3. Rabbi Yochanan HaSandlar (Strictest — Not Followed)

- **Beshogeg**: Only others may eat after Shabbat; the person himself may never eat it.
- **Bemeizid**: No one may ever benefit from it.

Summary Table

Scenario	Rabbi Meir	Rabbi Yehuda	R. Yochanan HaSandlar
Shogeg — on Shabbat	Everyone may eat	No one may eat	No one may eat
Shogeg — after Shabbat	Everyone may eat	Everyone may eat	Others only; he — never
Meizid — on Shabbat	No one may eat	No one may eat	No one may eat
Meizid — after Shabbat	Everyone may eat	Others may eat; he — never	No one — ever

The Halachic Ruling

- General principle: in a **הלכה כרבי יהודה**, מחלוקת ר' מאיר ור' יהודה.
- The **Rif**, **Rambam**, and most likely the **Rosh** all rule like Rabbi Yehuda.
- **Tosafot** and the **Vilna Gaon (GR"A)** rule like Rabbi Meir, based on a story in the Gemara where Rav paskened like Rabbi Meir. The Rif addresses this, saying Rav did not follow the general principle (klal), but we do.

The Shulchan Aruch's Ruling (Following Rabbi Yehuda)

המבשל בשבת או שעשה אחת משאר מלאכות — במזיד: אסור לו לעולם, ולאחרים מותר למוצאי שבת מיד. בשוגג: אסור בו ביום גם לאחרים, ולערב מותר גם לו מיד.

- **Bemeizid**: Forbidden to the violator forever. Permitted to everyone else immediately after Shabbat.
- **Beshogeg**: Forbidden to everyone on Shabbat. Permitted to everyone (including the violator) immediately after Shabbat.

Mishnah Berurah and the Ashkenazi Position

- The Mishnah Berurah notes that the **GR"A follows Tosafot** (i.e., Rabbi Meir).
- **Ruling**: במקום הצורך (in a case of need), one may rely on the GR"A and Tosafot — meaning beshogeg, one could eat even on Shabbat itself.
- **Practical example**: You are invited to someone's home for Shabbat lunch and discover the food was cooked on Shabbat beshogeg. According to the Shulchan Aruch: forbidden until Motza'ei Shabbat. According to the Mishnah Berurah: bemakom hatzorech (e.g., to avoid embarrassment), one could rely on Rabbi Meir.

Rav Ovadia Yosef's Position (Sefardi Ruling)

- **We do not rely on the Mishnah Berurah's leniency.** The Shulchan Aruch brings only one opinion (Rabbi Yehuda) — there is no second opinion to rely on bemakom hatzorech.
- One cannot rely on שיטות דחויות (rejected opinions). Even bemakom hatzorech, the food is forbidden on Shabbat if cooked beshogeg.

Defining Shogeg, Meizid, and Mitasek

Three categories of intent on Shabbat:

Category	Definition	Example
Meizid (Intentional)	Knows it's Shabbat, knows the action is forbidden, does it anyway	Deliberately turns on oven on Shabbat
Shogeg (Unintentional)	Conscious action, but either doesn't know it's Shabbat OR doesn't know the action is forbidden	Drives to shul thinking it's Sunday; cooks not knowing it's forbidden
Mitasek (Non-deliberate)	Performs the action without any conscious intent	Leans against wall and accidentally flips light switch

Key distinctions:

- Shogeg requires a **conscious, willful action** — the error is only in knowledge (of the day or the prohibition).
- Mitasek is not considered a ma'aseh (act) at all — no korban chatat would be brought in the time of the Mishkan.
- **Chacham Ovadia's ruling on asking a Rav**: If someone asked a competent Rav who mistakenly permitted an action — that is shogeg. But if someone knowingly asked an incompetent Rav (who they know doesn't know halachah properly), and that Rav permitted it — **that is meizid**, because the person bears responsibility for asking the wrong authority.

Nature of the Prohibition (Geder Halssur)

D'Oraita or D'Rabbanan?

- **D'Rabbanan.** Although one opinion in the Gemara learns it from a pasuk, all agree this is only an אסמכתא (textual support, not actual derivation).

What Kind of D'Rabbanan?

- It is a **קנס** (penalty) — Chazal penalize the violator to prevent people from benefiting from forbidden acts.
- **Why penalize shogeg too?** שוגג אטו מזיד — shogeg acts as a fence to prevent meizid. If shogeg were permitted, people might claim shogeg while acting bemeizid.

Rav Moshe Feinstein: It Is an Issur Hana'ah (Prohibition of Benefit)

- Rav Moshe understands the prohibition as specifically an **issur of benefiting** from the product of the violation.
- **Practical implication — מצוות לאו ליהנות ניתנו** (mitzvot are not given for the purpose of personal enjoyment):
- **Mikvah case**: If someone accidentally turned on the mikvah heater on Shabbat, a woman who needs to immerse may do so — because immersion is a mitzvah, not primarily for hana'ah.
- **Sukkah case**: If relatives built their sukkah on Shabbat (even beshogeg), you may sit in it — because sitting in a sukkah is a mitzvah, and mitzvot are not considered hana'ah in this context.

The Scope of Issur Hana'ah

- The prohibition is against **directly benefiting from the product of the melachah** — e.g., eating food that was cooked.
- It is **not** a blanket issur hana'ah like chametz. One may:
- Sell the item
- Give it to others (for whom it is permitted)
- The Gemara states explicitly: **היא ולא דמיה** — "it, but not its monetary value." You can benefit financially, just not from the direct product of the violation.

D'Rabbanan Violations

- If the Shabbat violation itself was only **d'Rabbanan** (e.g., cooking through toldot hachama — heat of the sun):
- **Beshogeg**: Everyone may benefit from it even on Shabbat (Rabbi Yehuda effectively agrees with Rabbi Meir for d'Rabbanan violations).
- **Bemeizid**: Forbidden for everyone until after Shabbat.

Application to Other Melachot

- The Rambam codifies this principle regarding **אחת מהמלאכות** (any of the melachot) — not specifically bishul.
- The Gemara used bishul as an example, but the principle applies broadly.

The Chayei Adam's Distinction: Intrinsic Change vs. No Change

The Chayei Adam introduces an important leniency:

> דוקא בדבר שנעשה מעשה בגופו של דבר שישתנה מכמות שהיה — כמבשל. אבל המוציא מרשות לרשות שלא נשתנה הדבר מכמות שהיה...

- **Melachot that intrinsically change the object** (cooking, building, laundering, tying, planting, etc.): The full penalty of ma'aseh Shabbat applies.

- **Melachot that do NOT change the object** (e.g., hotza'ah — carrying): The penalty is more lenient:
- **Beshogeg**: Everyone may benefit even on Shabbat.
- **Bemeizid**: Everyone must wait until after Shabbat.
- Effectively follows Rabbi Meir even for d'Oraita.
- **Example (Chacham Ovadia)**: Sweets carried to a shul on Shabbat without an eruv — if done beshogeg, one may eat them on Shabbat, since carrying does not change the nature of the sweets.
- **Possible extension to borer (selecting)**: The lecturer suggests that borer (separating/sorting) also does not intrinsically change the substance, and the Chayei Adam's leniency may logically apply — though he notes he has not seen this explicitly in the sources.

Chayei Adam's Distinction — Summary

The Chayei Adam's ruling applies on the level of Rabbi Meir even for d'Oraita violations, meaning:

- **Beshogeg**: Everyone may benefit even on Shabbat.
- **Bemeizid**: Everyone (including the violator) must wait until after Shabbat.

This is specifically for melachot where there is no intrinsic change to the object (e.g., carrying, and potentially selecting/borer). For melachot that do change the object (cooking, building, laundering, etc.), the standard halachah of Rabbi Yehuda applies.

Planting Exception

- If someone plants on Shabbat, the seed cannot be benefited from ever, because you wouldn't benefit from it on Shabbat anyway — the penalty remains permanently.

Laundering Example

- **Beshogeg**: Cannot wear the laundered garment until after Shabbat; then everyone may.
- **Bemeizid**: The violator can never wear the garment again (אסור לו לעולם); everyone else may wear it after Shabbat.
- **Ben Ish Chai's question**: Can one dirty the garment and re-launder it to remove the original issur? He contradicts himself — in Rav Pe'alim he says no; in the Ben Ish Chai itself he says yes. Chacham Ovadia relies on this leniency (combined with the factor of Rabbi Meir's opinion).

The Emphasis on מיד (Immediately)

The Shulchan Aruch emphasizes **מיד** (immediately) twice — both for bemeizid (others after Shabbat) and beshogeg (everyone after Shabbat).

Purpose: To exclude the concept of **בכדי שיעשו** ("the time it would take to perform the action").

- With a **non-Jew** who performs a prohibited melachah: sometimes one must wait after Shabbat for the amount of time the action would have taken (e.g., if a non-Jew cooked food that took one hour, you'd wait one hour after Shabbat).
- With a **Jew**: There is **no** such requirement. The reason: **אין אדם חוטא ולא לו** — we are not concerned that Jews will routinely commission other Jews to violate Shabbat on their behalf, so the extra fence of בכדי שיעשו was not applied.

"Others" Includes the Intended Beneficiary

- Even if someone cooked **specifically for you** on Shabbat bemeizid (and you didn't ask them to), you are still considered **אחרים** (others) — not the violator.
- You may eat that food after Shabbat.
- **Example**: A non-religious parent cooks for you on Shabbat despite being told not to — you may eat the food after Shabbat.

Only B'Akrai (Occasional) — Chacham Ovadia's Limitation

- This leniency (that "others" may eat after Shabbat) applies **only when it happens occasionally (בעקראי)**, not on a regular basis.
- **Example**: A kosher restaurant in Israel owned by a secular Jew who cooks on Shabbat afternoon for Motza'ei Shabbat customers — if it happens once, others may eat. If it is a **weekly occurrence**, the food is forbidden (beyond the separate issue of lifnei iver).
- A parent who cooks every Shabbat for their child cannot be relied upon — the food is forbidden every time. A one-off occurrence is permissible after Shabbat.

Can the Pot Be Used After Meizid Cooking?

- **Mishnah Berurah**: The pot cannot be used by the violator, because the forbidden taste has been **absorbed** (בלוע) into the pot walls. However, after 24 hours, the absorbed taste becomes נותן טעם לפגם (imparts a bad flavor), and the pot may be used.
- **Rav Ovadia Yosef**: Rules that the pot is 100% fine to use. He argues that even with bishul akum (food cooked by a non-Jew), where the Shulchan Aruch requires hag'alah (kashering), it is a machloket Rishonim — and here, the prohibition applies only to one person, making it even more lenient.

Safek (Doubt) — Leniency

וכל שיש ספק פלוגתא... אין לאסור בדיעבד, דכל האיסור הזה דרבנן שקנסו, וספיקא דרבנן לקולא.

- Whenever there is a **machloket among the Rishonim** about whether a particular action constitutes a violation, and the action was done — **bediavad, the penalty does not apply**.
- Since the entire prohibition of ma'aseh Shabbat is d'Rabbanan, the rule of **ספיקא דרבנן לקולא** applies.
- **Example 1 — Reheating liquids**: The Shulchan Aruch holds reheating cooled liquids is assur d'Oraita, but the Rambam permits it. Bediavad, if someone reheated a cooled liquid on Shabbat (even bemeizid), the food may be eaten.
- **Example 2 — Ma'achal Ben Drusai**: If food was already half-cooked (edible) before Shabbat and further cooked on Shabbat, there is a machloket Rishonim about whether this is an issur d'Oraita. Bediavad, the food may be eaten.

Electricity in Israel

- Many people in Israel avoid using standard electricity on Shabbat because Jewish workers operate the power plants bemeizid.
- They use private generators instead.
- **Rav Ovadia Yosef permits** standard electricity, based on the argument (also stated by Rav Mordechai Eliyahu) that electricity must be **continuously produced for pikuach nefesh** — hospitals, critically ill

patients, etc. Since it cannot be determined which electricity serves whom, the production is permissible, and everyone may benefit.

Seif Bet (ב): Melachah Done Permissibly for a Choleh (Ill Person)

Shechitah (Slaughtering) for a Choleh

השוחט בשבת לחולה — בין שחלה מאתמול בין שחלה היום — מותר הבריא לאכול ממנו חי בשבת.

- If an ill person (pikuach nefesh) needs meat on Shabbat, one may slaughter an animal for him.
- Since you must slaughter the **entire animal** (you cannot slaughter half), there is leftover meat.
- **Healthy people may eat the leftover meat raw on Shabbat** — because the slaughter was done be'heter (permissibly).
- Raw meat only — you cannot cook it (that would be a separate melachah not done for the choleh).
- You also **cannot salt the meat** on Shabbat, as salting is a d'Rabbanan of מעבד (tanning). You must wash off any surface blood.

Cooking or Other Melachot for a Choleh

ומבשל או שעשה שאר מלאכה לחולה — אסור בשבת לבריא ולחולה שאין בו סכנה.

- If someone **cooked** for a choleh on Shabbat (permissibly, for pikuach nefesh) and there are leftovers:
- **Healthy people may NOT eat the cooked food on Shabbat.**
- It is permitted after Shabbat.
- **Reason**: **דחיישינן שמא ירבה בשבילו** — we are concerned that the cook may add extra food for the healthy person while already cooking for the choleh. This concern may be d'Oraita.

Why the Difference Between Shechitah and Bishul?

Factor	Shechitah	Bishul
Can you "increase" for others?	No — you slaughter one whole animal	Yes — easy to add more food to the pot
Leftovers permitted on Shabbat?	Yes (raw only)	No
Concern of מרבה	Does not apply	Applies — hence the prohibition

Even a Non-Jew Cooking for the Choleh

ואפילו בשל עכו"ם אסור בשבת

- Even if a non-Jew cooked for the ill person, healthy people still cannot eat the cooked food on Shabbat.

Fruits Cut from a Tree for a Choleh

אם קצץ מן הפירות מן המחובר לחולה בשבת — אפילו היה חולה מבעוד יום — אסור לבריא בשבת משום דגדל והולך בשבת ויש בו משום מוקצה.

- If fruits were plucked from a tree on Shabbat for a choleh:
- Even though only one fruit was taken (no concern of מרבה, similar to shechitah) — **it is still forbidden** for healthy people on Shabbat.

- **Reason**: The fruit is **muktzah** because it continues to grow on Shabbat. The additional growth that occurred on Shabbat is considered **נולד** (newly created), making the entire fruit muktzah.
- There is a discussion between the Magen Avraham and the GR"A about why this growth isn't batel (nullified), but the halachah stands that it is forbidden.

Ben Ish Chai: Choosing Between Animals for Shechitah

- If the shochet has a choice between a large chicken and a small chicken, and the choleh only needs the small one:
- **Ben Ish Chai**: It is wrong to slaughter the large one (to minimize the melachah).
- **Hamabit**: Disagrees — shechitah is shechitah regardless of size. There is no concept of מרבה in the act of cutting a larger vs. smaller neck.

Key Principles Summary

1. **Ma'aseh Shabbat** — benefiting from a Shabbat violation — is an **issur d'Rabbanan** (a penalty/קנס).
2. **Halachah follows Rabbi Yehuda**: Beshogeg — forbidden on Shabbat, permitted for everyone after. Bemeizid — forbidden forever for the violator; others permitted after Shabbat.
3. **Ashkenazi leniency** (Mishnah Berurah): Bemakom hatzorech, one may rely on Rabbi Meir (beshogeg = permitted even on Shabbat). **Sefardi psak** (Rav Ovadia): No reliance on this.
4. **D'Rabbanan violations**: Beshogeg = permitted immediately for everyone. Bemeizid = wait until after Shabbat.
5. **Chayei Adam**: Melachot that don't change the substance (carrying, possibly borer) — more lenient; effectively follows Rabbi Meir.
6. **Mitzvot la'av leihonot nitnu**: If the benefit is for a mitzvah (mikvah, sukkah), the penalty doesn't apply.
7. **Safek/machloket**: If there is a dispute about whether the action is a violation, bediavad the penalty does not apply (ספיקא דרבנן לקולא).
9. **Choleh**: Leftover cooked food from cooking for a choleh is forbidden on Shabbat (concern of מרבה); raw meat from shechitah is permitted.

Unlike with a non-Jew, there is no waiting period after Shabbat beyond Shabbat itself: **מיד — סס בכדי שיעשו**.

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